

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTOPHER MARSH,

Petitioner

VS.

VESNA MARSH,

Respondent

) Case Number: FDI-15-783933

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 9AM on 8/4/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

1) Petitioner Christopher Marsh (Husband) and Respondent Vesna Marsh (Wife) entered into a Stipulated Judgment which was filed on 11/24/2021. Both parties are currently self-represented.

2) Paragraph 3(G) of the Stipulated Judgment filed on 11/24/2021 provides in relevant part:

- a. "Vesna is awarded the following retirement accounts and all funds held therein: Aviva/Tk Account xxx-8658, and...Aviva/Tk Account xxx-1899. The accounts are currently in Chris' name. The parties will meet and confer and work together in preparing the necessary documents for the accounts to be transferred to Vesna's name. The cost of preparation of any documents necessary to effectuate the transfer shall be split 50/50 between the parties."

1 3) No substantive pleadings were filed in this matter since entry of Judgment until Wife filed the
2 instant Request for Order on 3/13/2026. Wife states that Aviva, which is a United Kingdom
3 pension entity, has informed Wife that it requires an England and Wales pension sharing order
4 before it can transfer the Aviva accounts into Wife's name. Wife states that at the time of
5 settlement, she agreed to accept Husband's Aviva UK pension interests because she "understood
6 their value to be roughly equivalent to a premarital gift from my parents that was at issue in the
7 settlement discussions" but she "did not then understand the later implementation problems
8 associated with transferring those pension interests under United Kingdom rules." Wife states she
9 has attempted to work with Husband regarding these issues but he has not been cooperative and
10 he failed to sign a Letter of Authority to authorize her to obtain plan-specific information from
11 Aviva directly. Wife asks the Court to:

- 12 a. Order Husband to cooperate in providing information and authorizations necessary for
13 valuation, including ordering Husband to sign any reasonable authorization or other
14 document necessary to obtain information from Aviva or to carry out any other order the
15 Court makes regarding valuation and enforcement;
 - 16 b. Award Wife an equalizing offset from other property or assets if direct transfer of the
17 Aviva pension interests cannot be completed; and
 - 18 c. Reserve jurisdiction to make any additional orders necessary to effectuate the Judgment
19 and achieve an equal division of the community property awarded by the Judgment.
- 20 4) Per the Proof of Service filed 4/24/2026, Wife's Request for Order, blank Responsive
21 Declaration, and the Tentative Ruling Instructions were personally served on Husband on
22 4/3/2026.
- 23 5) Husband did not file a Responsive Declaration.
- 24 6) At the prior 5/26/2026 hearing, neither party appeared and the party adopted its Tentative Ruling
25 without object from either party. As memorialized in the Findings and Order After Hearing filed
26 6/18/2026, the COurt ordered the parties to do the following:
- 27 a. Wife shall draft a Letter of Authority which authorizes Wife to obtain information
28 regarding Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 directly from
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1 Aviva. The Letter of Authority shall contain the information outlined by the Aviva
2 Customer Services Representative in Wife's Exhibit E.

- 3 b. Within 48 hours of being presented with the Letter of Authority drafted by Wife,
4 Husband shall sign and date the letter and return the letter to Wife.
- 5 c. Husband shall forthwith investigate what he can do to have Aviva/Tk Account xxx-8658
6 and Aviva/Tk Account xxx-1899 transferred into Wife's name and take any steps
7 necessary to effectuate those transfers.
- 8 d. A review hearing is set for Tuesday, 8/4/2026 at 9:00 AM in Dept. 404 for the Court to
9 review Husband's compliance with the orders set forth above and for the Court to
10 consider Wife's request to award Wife an equalizing offset from Husband's other
11 property or assets if direct transfer of the Aviva pension interests cannot be completed.
- 12 e. At least 30 calendar days prior to the next hearing date, Husband shall file and serve a
13 declaration which explains: (a) what efforts he has taken to date to have Aviva/Tk
14 Account xxx-8658 and Aviva/Tk Account xxx-1899 transferred into Wife's name; (b)
15 what is the current value of Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-
16 1899 (Husband shall also attach documentary evidence supporting these values); and (c)
17 what other assets he has that are equivalent in value to Aviva/Tk Account xxx-8658 and
18 Aviva/Tk Account xxx-1899 that can be transferred to Wife in lieu of the Aviva
19 accounts.
- 20 f. At least 10 calendar days prior to the next hearing date, Wife shall file and serve a
21 declaration providing any material updates related to her 3/13/2026 Request for Order.
- 22 7) On 7/23/2026, Wife filed a Declaration. Wife states that she prepared a Letter of Authority and
23 Husband signed it. Wife also states the Letter of Authority was transmitted to Aviva and Aviva
24 acknowledged receipt. Wife further states that Aviva provided statements showing that the stated
25 transfer value of the two plans as of 6/7/2026 was £187,652.60. Wife states that Wife has
26 received no information from Husband identifying any steps he has taken to effectuate the
27 transfer of the two retirement accounts into her name. Wife asks the Court to review Husband's
28 compliance with prior orders at the 8/4/2026 hearing and make any further orders necessary to
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1 effectuate the Judgment, including an equalizing offset if direct transfer of the Aviva pension
2 interests cannot be completed.

3 8) Husband has filed no pleadings in this matter since the Judgment was entered.

4 **B. Findings and Order**

5 **1) The parties are ordered to appear.**